

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

20230930-DK-BUTTERFLY-1, INC. F/K/A BED BATH &
BEYOND INC., *Complainant*

DOCKET NO. 24-12

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC
#011982) CONSISTING OF EVERGREEN MARINE CORP.
(TAIWAN) LTD.; EVERGREEN MARINE (UK) LIMITED; ITALIA
MARITTIMA SPA; EVERGREEN MARINE (HONG KONG) LTD.;
AND EVERGREEN MARINE (SINGAPORE) PTE. LTD.,
Respondents.

Served: September 30, 2025

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge.*

**ORDER GRANTING IN PART RESPONDENT’S MOTION TO COMPEL AND GRANTING MOTION
FOR CONFIDENTIAL TREATMENT**

I. Background and Confidential Treatment

On August 13, 2025, Respondents (collectively “Evergreen”) filed a motion to compel interrogatory responses. Dkt. 42. On August 20, 2025, Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond (“BBBY”), filed its opposition [Dkt. 47] along with a motion for confidential treatment [Dkt. 46]. I held a discovery conference on August 21, 2025, and BBBY subsequently filed an amended opposition [Dkt. 49] and amended motion for confidential treatment [Dkt. 48].

BBBY’s amended motion for confidential treatment notes that the motion is now filed with Evergreen’s consent, the parties agreeing to only redact pricing information. Am. Mot. for Confidential Treatment 2. And comparing BBBY’s opposition to its amended opposition, it appears that only the proposed redactions have been changed – there was no substantive change to the opposition.

There is a strong presumption in favor of public access to judicial proceedings. *In re McCormick & Co., Pepper Prods. Mktg. & Sales Practices Litig.*, 316 F. Supp. 3d 455, 463 (D.D.C. 2018). Public access to judicial records is not limitless, however, and may be denied “to protect trade secrets . . . and to minimize the danger of an unfair trial by adverse publicity.” *U.S. v. Hubbard*, 650 F.2d 193, 315-16 (D.C. Cir. 1980). The Commission requires parties to justify confidential treatment by motion. 46 C.F.R. § 502.5(b). BBBY has done so, and its redactions are reasonably limited to sensitive information of the type normally granted confidential treatment in

proceedings before the Commission. BBY's amended motion for confidential treatment is therefore **GRANTED**. No confidential information is included in this order, although there are citations to confidential materials in the parties' filings.

The parties are reminded not only of their obligation to supplement their answers as discovery progresses, but also of their duty to confer in good faith to resolve discovery disputes. The types of disputes in this motion – where information is provided in a format that the requestor does not prefer, or where a party has provided the requested information in response to certain interrogatories but not in response to substantially similar interrogatories – are the types of disputes that parties should be able to work out on their own.

II. Discussion

In Commission proceedings, generally, parties may obtain discovery regarding any nonprivileged matter that is relevant to any party's claim or defense—including the existence, description, nature, custody, condition, and location of any documents or other tangible things and the identity and location of persons who know of any discoverable matter. 46 C.F.R. § 502.141(e)(1). Relevant information need not be admissible at hearing if the discovery appears reasonably calculated to lead to the discovery of admissible evidence. *Id.* Discovery may be limited where it is unreasonably cumulative or duplicative, or where the burden or expense of the proposed discovery outweighs its likely benefit considering the needs of the proceeding, the amount in controversy, the parties' resources, the importance of the issues at stake in the action, and the importance of the discovery in resolving the issues. 46 C.F.R. §§ 502.141(e)(2)(A) and (C).

A party may file a motion to compel answers to interrogatories or document requests, and the motion must include: a certification that the moving party has conferred in good faith in an effort to obtain compliance without the need for a motion, a copy of the disputed requests, a copy of any answer provided, the certificate of service that accompanied the discovery requests, and any supporting argument. 46 C.F.R. § 502.150 (a)(2). Evergreen's motion to compel satisfies these requirements. See Mot. to Compel: Declaration of R. Betancourt of Good Faith Efforts to Avoid Motion Practice, Exs. A and B (BBY answer and supplemental answers). For the reasons discussed below, Evergreen's motion to compel will be **GRANTED IN PART**.

A. Interrogatories 5, 6, 14, and 16

Evergreen's interrogatories 5, 6, 14, and 16 are contention interrogatories seeking information supporting allegations in specified paragraphs in BBY's complaint. Interrogatories 5 and 14 relate to allegations that Evergreen systemically failed to meet its service commitments to BBY under the parties' service contract, interrogatory 6 relates to Evergreen's alleged practice of preferring higher-priced freight, and interrogatory 16 relates to unfair and unreasonable practices more generally. BBY provided answers and supplemental answers to these interrogatories as follows:

INTERROGATORY NO. 5: Explain in detail the factual “information” supporting Complainant’s “belief” that “Evergreen systematically failed to meet...service commitments and allocated Complainant’s bargained-for space to higher-priced cargo from other shippers to maximize Evergreen’s own profits,” as alleged in paragraph 5 of the Complaint.

ANSWER: Complainant incorporates its General Objections as though fully set forth herein. Complainant further objects that Interrogatory No. 5 seeks disclosure of information that is not relevant to any claims or defenses in this action and that is not likely to lead to the discovery of admissible evidence, including information and allegations underlying actions other than this action before the Federal Maritime Commission. Complainant further objects to Interrogatory No. 5 to the extent it mischaracterizes, paraphrases, or quotes incomplete portions of the allegations in Paragraph 5 of the Complaint, and refers Respondents to those allegations for their complete and accurate contents.

Subject to and without waiver of the foregoing, Complainant states that document collection and review is still ongoing, and that after an appropriate confidentiality stipulation and protective order providing for the confidential treatment of documents and information is agreed by the Parties and issued by the Presiding Officer in this action, Complainant intends to produce in discovery in this action relevant, non-privileged documents and information sufficient to respond to Interrogatory No. 5.

SUPPLEMENTAL ANSWER: Subject to and without waiver of the foregoing, Complainant supplements its previous answer to Interrogatory No. 5 by referring Respondent to documents bates-stamped BBY_ EVERGREEN-0000744754, BBY_ EVERGREEN-0001380997, and BBY_ EVERGREEN-0000271786, produced to Respondent in this action, which are identified herein on a non-exhaustive basis and subject to further supplementation. As alleged in paragraph 5 of the Complaint, “Evergreen systematically failed to meet...service commitments and allocated Complainant’s bargained-for space to higher-priced cargo from other shippers to maximize Evergreen’s own profits.” The documents cited provide detail on the shipments that Evergreen did ship on behalf of Complainant, compared to the service commitments agreed for each contract year.

BBY_ EVERGREEN-0000744754 was produced in this proceeding as a part of BBY’s fourth production, made on May 2, 2025.

BBY_ EVERGREEN-0000744754 contains a pivot table with the volume of cargo, converted to FEUs, shipped by Evergreen for BBY during the relevant time period, which is far less than the service commitments from Evergreen to BBY set forth in the Service Contracts. As set forth in the data contained in BBY_ EVERGREEN-0000744754, for the 2020 Shipping Year, there was a shortfall of 789 FEUs and for the 2021-2022 Shipping Year there was a shortfall of 259.9 FEUs.

The chart below contains the quantity carried as set forth in BBY_ EVERGREEN-0000744754. In preparation of the Complaint, Complainant relied on the number of containers shipped for calculating

Evergreen's FEU shortfall, which are here more specifically alleged as FEUs as converted by the terms of the Service Contracts. For the 2020–2021 Shipping Year (May 1, 2020– April 30, 2021) the Minimum Quantity Commitment was 1,250 FEUs, and Evergreen actually shipped: 461 FEUs, resulting in a shortfall of 789 FEUs, and an additional incremental cost of replacing that shortfall on the spot market of \$3,114,556.30 more than what Complainant would have paid had Evergreen honored its service commitments. For the 2021–2022 Shipping Year (May 1, 2021 – April 30, 2022) the Minimum Quantity Commitment was 750 FEUs, and Evergreen actually shipped: 490.1 FEUs, resulting in a shortfall of 259.9 FEUs, and an additional incremental cost of replacing that shortfall on the spot market of \$4,289,079.83 more than what Complainant would have paid had Evergreen honored its service commitments.

Shipping Year	Contract MQC	Alleged Shipped (Complaint)	Actual Shipped (BBBY_EVERGREEN - 0000744754)	MQC shortfall
2020–2021	1,250 FEUs	256.84 FEUs	461 FEUs	789 FEUs
2021–2022	750 FEUs	455.92 FEUs	490.1 FEUs	259.9 FEUs

The document contained at bates number BBBY_EVERGREEN-0001380997 is a spreadsheet created by Paul Pastor containing container information selected by former logistics employees of BBBY from BBBY data sources.

BBBY_EVERGREEN-0001380997 was produced in this proceeding as a part of BBBY's sixth document production made on July 15, 2025. BBBY_EVERGREEN-0000271786, and its accompanying parent email BBBY_EVERGREEN-0000271785, were produced in this proceeding as a part of BBBY's third production made on February 25, 2025. The document contained at bates number BBBY_EVERGREEN-0000271786 is a spreadsheet that was sent as an attachment to an email (produced in this action at bates number BBBY_EVERGREEN-0000271785) from Paul Pastor to Ian Pinchuk on May 17, 2023. The subject line of the email was "Berman file v3" and the name of the spreadsheet file at bates number BBBY_EVERGREEN-0000271786 is identified as "Copy of Copy of Berman_Import 050423 v3.xlsb". This document contains container information data from BBBY's third-party payment processing service, Berman Blake.

BBBY_EVERGREEN-0001380997 supplements the records contained within the Berman data reflected in BBBY_EVERGREEN-0000271786. BBBY_EVERGREEN-0000271786 and BBBY_EVERGREEN-0001380997 together comprise the data necessary to compare the cost of containers shipped with NVOCCs on the shipping lanes that were supposed to have been covered by the 2020 Service Contract and 2021 Service Contract, with the costs for such containers pursuant to each time period to calculate the additional incremental costs incurred by BBBY to ship actual containers on the same lanes and in the

same shipping year as a result of Evergreen's failure to satisfy its service commitments.

In the face of Evergreen's overwhelming failures, Evergreen nonetheless made record profits: approximately \$10.893 billion in 2021 (over double the operating income from fiscal year 2020) and \$12.993 billion in 2022 (approximately 30% greater than the operating income from fiscal year 2021, which was already record breaking). These numbers represented large increases from the \$1.619 billion in profits that Evergreen realized for fiscal year 2020 and the significant jump from the mere \$0.486 billion for pre-pandemic fiscal year 2019. Complainant refers Respondent to Evergreen's financial statements and shipment volume data in the Evergreen 2021 and 2022 Annual Reports, attached hereto as Exhibit 1, for the relevant time period, as well as any related internal communications or records produced in this action that show what Evergreen did with the committed space that it failed to properly ship for BBY and Evergreen's use of that capacity.

Complainant restates its objection that a demand to provide all documents in support of its claims is unreasonable and unduly burdensome, but such documents include: EVERGREEN-00062673, which is an internal Evergreen email dated July 31, 2021 from Justin J.M. Chiu to Abdel El Hely, demonstrating that there was recognition within Evergreen that space was being not allocated to shippers who refused to increase their contract rates. The email chain shows that while Complainant was offered June reefer cargo space, such space was not provided, even after making offers to pay more or agree to premium rates. Despite Complainant's best efforts to book space and acknowledgment within Evergreen that there were long-standing relationships with shipper customers, Evergreen could barely confirm any bookings. In response to being told that tariff rates were increasing and that Evergreen was "controlling the volume" into the U.S. West Coast, Mr. El Hely even stated that he "[u]nderstood but I believe we should honor SOMETHING for what account signed for yes? Meaning right now they have 4 confirmations and 3/4 are for HIGH level premium." Despite attempting to gain additional space for the shippers, the email outlines clearly how this booking behavior harmed shippers and added unnecessary costs, to the detriment of Complainant.

INTERROGATORY NO. 6: Explain in detail the factual "information" supporting Complainant's "belief" that Evergreen engaged in a practice of preferring higher-priced freight, as alleged in paragraph 41 of the Complaint.

ANSWER: Complainant incorporates its General Objections as though fully set forth herein. Complainant further objects that Interrogatory No. 6 seeks disclosure of information that is not relevant to any claims or defenses in this action and that is not likely to lead to the discovery of admissible evidence, including information and allegations underlying actions other than this action before the Federal Maritime Commission. Complainant further objects to Interrogatory No. 6 to the extent it mischaracterizes, paraphrases, or quotes

incomplete portions of the allegations in Paragraph 41 of the Complaint, and refers Respondents to those allegations for their complete and accurate contents.

Subject to and without waiver of the foregoing, Complainant states that document collection and review is still ongoing, and that after an appropriate confidentiality stipulation and protective order providing for the confidential treatment of documents and information is agreed by the Parties and issued by the Presiding Officer in this action, Complainant intends to produce in discovery in this action relevant, non-privileged documents and information sufficient to respond to Interrogatory No. 6.

SUPPLEMENTAL ANSWER: Subject to and without waiver of the foregoing, Complainant supplements its previous answer to Interrogatory No. 6 by referring Respondent to Complainant's supplemental response to Interrogatory No. 5 demonstrating that Evergreen fell well short of its service commitments to Complainant while nonetheless realizing record profits, including documents bates-stamped BBY_EVERGREEN-0000744754, BBY_EVERGREEN-0001380997, and BBY_EVERGREEN-0000271786, produced to Respondent in this action, and Exhibit 1 hereto, which are identified herein on a non-exhaustive basis and subject to further supplementation.

As to PSS and other extracontractual charges imposed by Evergreen on Complainant for the limited cargo that Evergreen did carry, BBY has produced documents underlying BBY's extra-contractual charges reparations claim, calculated by merging container-level data from BBY_EVERGREEN-0000744754 and BBY_EVERGREEN-0001380997 for all containers shipped by BBY with Evergreen, other VOCCs, and NVOCCs and then comparing the cost of containers actually shipped with Evergreen on relevant lanes during the 2020 Shipping Year and 2021 Shipping Year versus what those containers should have cost. had Evergreen honored its existing service commitments at contract rates.

Complainant restates its objection that a demand to provide all documents in support of its claims is unreasonable and unduly burdensome, but such documents include: EVERGREEN-00062673, which is an internal Evergreen email dated July 31, 2021 from Justin J.M. Chiu to Abdel El Hely, demonstrating that there was recognition within Evergreen that space was being not allocated to shippers who refused to increase their contract rates. The email chain shows that while Complainant was originally offered June reefer cargo space, such space was not provided, even after making offers to pay more or agree to premium rates. Despite Complainant's best efforts to book space and acknowledgment within Evergreen that there were long-standing relationships with shipper customers, Evergreen could barely confirm any bookings. In response to being told that tariff rates were increasing and that Evergreen was "controlling the volume" into the U.S. West Coast, Mr. El Hely even stated that he "[u]nderstood but I believe we should honor SOMETHING for what account signed for yes? Meaning right now they have 4 confirmations and 3/4 are for HIGH level premium." Despite attempting to gain additional space for the shippers, the email outlines clearly

how this booking behavior harmed shippers and added unnecessary costs, to the detriment of Complainant.

INTERROGATORY NO. 14: Explain in detail the facts supporting Complainant's assertion that Evergreen engaged in a practice of "systematically failing to meet its service commitments," as alleged in the Complaint.

ANSWER: Complainant incorporates its General Objections as though fully set forth herein. Complainant further objects to Interrogatory No. 14 to the extent it purports to require the production of documents or information that are protected by the attorney-client privilege, the attorney work product doctrine, or any other applicable privileges, immunities, or protective doctrines. Complainant further objects to Interrogatory No. 14 to the extent that it seeks disclosure of information protected by obligations of confidentiality. Complainant further objects to Interrogatory No. 14 to the extent it mischaracterizes, paraphrases, or quotes incomplete portions of the allegations in the Complaint, and refers Respondents to those allegations for their complete and accurate contents.

Subject to and without waiver of the foregoing, Complainant states that document collection and review is still ongoing, and that after an appropriate confidentiality stipulation and protective order providing for the confidential treatment of documents and information is agreed by the Parties and issued by the Presiding Officer in this proceeding, Complainant intends to produce in discovery in this action relevant, non-privileged documents and information sufficient to respond to Interrogatory No. 14.

SUPPLEMENTAL ANSWER: Subject to and without waiver of the foregoing, Complainant supplements its previous answer to Interrogatory No. 14 by referring Respondent to documents bates-stamped BBY_ EVERGREEN-0000744754, BBY_ EVERGREEN-0000271786, and BBY_ EVERGREEN-0001380997, produced to Respondent in this action, which are identified herein on a non-exhaustive basis.

BBY_ EVERGREEN-0000744754 contains a pivot table with the volume of cargo, converted to FEUs, shipped by Evergreen for BBY during the relevant time period, which is far less than the service commitments from Evergreen to BBY set forth in the Service Contracts. As set forth in the data contained in BBY_ EVERGREEN-0000744754, for the 2020 Shipping Year, there was a shortfall of 789 FEUs and for the 20201-2022 Shipping Year there was a shortfall of 259.9 FEUs. BBY_ EVERGREEN-0000271786 contains container information data from Complainant's third-party payment processing service, Berman Blake. Complainant produced BBY_ EVERGREEN-0000271786 in its third production.

BBY_ EVERGREEN-0001380997 is a spreadsheet produced in this proceeding on July 15, 2025, containing container information selected by former logistics employees of Complainant from Complainant's data sources. Metadata for the document shows that it was created by former Complainant employee Paul Pastor.

BBBY_EVERGREEN-0000271786 and BBBY_EVERGREEN-0001380997 together comprise the data necessary to compare the cost of containers shipped with NVOCCs on the shipping lanes that were supposed to have been covered by the 2020 Service Contract and 2021 Service Contract, with the costs for such containers pursuant to each time period to calculate the additional incremental costs incurred by BBBY to ship actual containers on the same lanes and in the same shipping year as a result of Evergreen's failure to satisfy its service commitments.

Complainant restates its objection that a demand to provide all documents in support of its claims is unreasonable and unduly burdensome, but such documents include: EVERGREEN-00062673, which is an internal Evergreen email dated July 31, 2021 from Justin J.M. Chiu to Abdel El Hely, demonstrating that there was recognition within Evergreen that space was being not allocated to shippers who refused to increase their contract rates. The email chain shows that while Complainant was originally offered June reefer cargo space, such space was not provided, even after making offers to pay more or agree to premium rates. Despite Complainant's best efforts to book space and acknowledgment within Evergreen that there were long-standing relationships with shipper customers, Evergreen could barely confirm any bookings. In response to being told that tariff rates were increasing and that Evergreen was "controlling the volume" into the U.S. West Coast, Mr. El Hely even stated that he "[u]nderstood but I believe we should honor SOMETHING for what account signed for yes? Meaning right now they have 4 confirmations and 3/4 are for HIGH level premium." Despite attempting to gain additional space for the shippers, the email outlines clearly how this booking behavior harmed shippers and added unnecessary costs, to the detriment of Complainant.

INTERROGATORY NO. 16: Explain in detail the facts supporting Complainant's assertion that Evergreen engaged in "numerous unfair and unreasonable practices against Complainant" as alleged in paragraph 70 of the Complaint.

ANSWER: Complainant incorporates its General Objections as though fully set forth herein. Complainant further objects to Interrogatory No. 16 to the extent it purports to require the production of documents or information that are protected by the attorney-client privilege, the attorney work product doctrine, or any other applicable privileges, immunities, or protective doctrines. Complainant further objects to Interrogatory No. 16 to the extent that it seeks disclosure of information protected by obligations of confidentiality. Complainant further objects to Interrogatory No. 16 to the extent it mischaracterizes, paraphrases, or quotes incomplete portions of the allegations in Paragraph 70 of the Complaint, and refers Respondents to those allegations for their complete and accurate contents.

Subject to and without waiver of the foregoing, Complainant states that document collection and review is still ongoing, and that after an appropriate

confidentiality stipulation and protective order providing for the confidential treatment of documents and information is agreed by the Parties and issued by the Presiding Officer in this proceeding, Complainant intends to produce in discovery in this action relevant, non-privileged documents and information sufficient to respond to Interrogatory No. 16.

SUPPLEMENTAL ANSWER: Subject to and without waiver of the foregoing, Complainant restates its objection that a demand to provide all documents in support of its claims is unreasonable and unduly burdensome, but such documents include, BBY_ EVERGREEN- 0001380997, BBY_ EVERGREEN-0000744754 and BBY_ EVERGREEN-0000271786, produced to Respondent in this action, which are identified herein on a non-exhaustive basis, and which identify Evergreen's failures to satisfy its service commitments to Complainant and to impose extracontractual surcharges in addition to the agreed-to ocean freight rates for the little ocean freight that Evergreen did carry.

Complainant further identifies EVERGREEN-00062673, which is an internal Evergreen email dated July 31, 2021 from Justin J.M. Chiu to Abdel El Hely, demonstrating that there was recognition within Evergreen that space was being not allocated to shippers who refused to increase their contract rates. The email chain shows that while Complainant was originally offered June reefer cargo space, such space was not provided, even after making offers to pay more or agree to premium rates. Despite Complainant's best efforts to book space and acknowledgment within Evergreen that there were long-standing relationships with shipper customers, Evergreen could barely confirm any bookings. In response to being told that tariff rates were increasing and that Evergreen was "controlling the volume" into the U.S. West Coast, Mr. El Hely even stated that he "[u]nderstood but I believe we should honor SOMETHING for what account signed for yes? Meaning right now they have 4 confirmations and 3/4 are for HIGH level premium." Despite attempting to gain additional space for the shippers, the email outlines clearly how this booking behavior harmed shippers and added unnecessary costs, to the detriment of Complainant.

As an initial matter, Evergreen's arguments about the propriety of relying on business records to answer an interrogatory are irrelevant because that is not what BBY has done. Mot. to Compel 1-2. As BBY explains in its narrative answers to the interrogatories, and as it further explained at the discovery conference, the referenced spreadsheets are compilations of data, pulled from BBY's business records and the business records of its payment processor, Berman Blake, for the purpose of this litigation. The spreadsheet labeled BBY_ EVERGREEN- 0001380997 ("997") consolidates and supplements two other spreadsheets. Sheet 754 is pivot table containing information regarding containers actually shipped including carriers, shipped dates, amount shipped, cargo shipped, and other relevant information, which can be sorted by carrier, including Evergreen. Sheet 786 contains the pricing data from Berman Blake. This is not a document dump, as Evergreen alleges, but a compilation and synthesis of voluminous business data. Such data is routinely organized by means of spreadsheets and pivot tables, and to the

extent Evergreen argues that BBY must detail shipment-level data in a narrative format, that is simply incorrect.

BBY's narrative answers further tie the information together, calculating the alleged shortfall between Evergreen's commitment and what it actually shipped, stating what BBY's alleged damages are, providing information regarding Evergreen's profitability during the relevant time period to support the inference that Evergreen must have provided BBY's contracted space to higher-paying shippers, and providing text from an internal email at Evergreen purportedly demonstrating that the practice of denying shippers their contracted space for the purpose of favoring higher-priced cargo was widespread and well known. Other than complaining about the spreadsheets, Evergreen does not specify what further information or detail it believes is missing.

Contention interrogatories generally ask a party to state what it contends, or to state all the facts upon which it bases a contention. While such interrogatories are permitted, the obligation to respond to them is often postponed until near the end of the discovery period. *Everett v. USAir Grp., Inc.*, 165 F.R.D. 1, 3 (D.D.C. 1995). Contention interrogatories that systematically track all of the allegations in an opposing party's pleadings and that ask for "each and every fact" that supports the allegations are an abuse of the discovery process because they are overly broad and unduly burdensome. *Lucero v. Valdez*, 240 F.R.D. 591, 594 (D.N.M. 2007). Contention interrogatories should not require a party to provide the equivalent of a narrative account of its case, including every evidentiary fact, details of testimony of supporting witnesses, and the contents of supporting documents. *Id.*

Ruling: Given the stage of proceedings, I do not find that BBY's answers to interrogatories 5, 6, 14, and 16 are inadequate. Nor do I find that BBY's organization of its business information into spreadsheets and pivot tables, rather than a shipment-by-shipment narrative, is improper. And while I remind BBY of its obligation to supplement its answers as discovery progresses, the motion with respect to these interrogatories is DENIED.

B. Interrogatories 7-10

Evergreen's interrogatories 7-10 seek shipment-level information with respect to cargo that BBY tendered to Evergreen and that Evergreen refused to ship:

INTERROGATORY NO. 7: For each shipment that Complainant asserts it tendered to Respondent during the 2020-2022 period, identify the cargo tendered (number and size of container and commodity(ies), origin and destination), the date of the tender, who tendered the cargo on behalf of Complainant (if this was a booking agent, identify the booking agent by name and provide contact information), whether the tender was accepted or declined, who accepted or declined the cargo on behalf of Respondent, any and all correspondence or communications (written or oral) between Complainant and Respondent regarding the shipment, and any and all correspondence or communications (written or oral) between Complainant and the booking agent and/or supplier regarding the shipment.

ANSWER: Complainant incorporates its General Objections as though fully set forth herein. Complainant further objects to Interrogatory No. 7 to the extent it purports to require the production of documents or information that are protected by the attorney-client privilege, the attorney work product doctrine, or any other applicable privileges, immunities, or protective doctrines. Complainant further objects to Interrogatory No. 7 to the extent that it seeks disclosure of information protected by obligations of confidentiality. Complainant further objects that Interrogatory No. 7 seeks disclosure of information that is not relevant to any claims or defenses in this action and that is not likely to lead to the discovery of admissible evidence, including information and allegations underlying actions other than this action before the Federal Maritime Commission. Interrogatory No. 7 also mischaracterizes the nature of Complainant's claims, which include allegations that Respondents not only failed to accept booking attempts by Complainant but also that Respondents created a system in which Complainant could not seek to tender cargo at all or was otherwise told in advance that proper bookings, if made, would be rejected.

Subject to and without waiver of the foregoing, Complainant further states that that document collection and review is still ongoing, and that after an appropriate confidentiality stipulation and protective order providing for the confidential treatment of documents and information is agreed by the Parties and issued by the Presiding Officer in this action, Complainant intends to produce in discovery in this action relevant, non-privileged documents and information sufficient to respond to Interrogatory No. 7.

SUPPLEMENTAL ANSWER: Subject to and without waiver of these objections, and without conceding that Complainant is required to provide the granular information requested for each such shipment, Complainant refers Respondents to shipment-level data and associated booking records produced in this action, which identify, as available and : (a) the size and number of containers moved, (b) the origin and destination, (c) the booking and movement dates, (d) the charges assessed by Respondent, and (e) instances in which Respondent failed to honor the contractually agreed base rate and instead imposed additional charges, including premium surcharges and peak season surcharges. See BBY_ EVERGREEN-0001380997, BBY_ EVERGREEN-0000271786, and BBY_ EVERGREEN-0000744754.

INTERROGATORY NO. 8: For each shipment identified in response to Interrogatory 7 where Respondent allegedly declined to carry the cargo, state in detail what specific steps Complainant took to identify and procure alternate transportation for such shipment, including the date it began taking steps, what steps it took to identify available space, whether Complainant identified alternate transportation, what measures it took to procure such identified space, and the result.

ANSWER: Complainant incorporates its General Objections as though fully set forth herein. Complainant further objects to Interrogatory No. 8 to the extent that it seeks disclosure of information protected by obligations of confidentiality. Complainant further objects that Interrogatory No. 8 seeks disclosure of information that is not relevant to any claims or defenses in this action and that is not likely to lead to the discovery of admissible evidence, including information and allegations underlying actions other than this action before the Federal Maritime Commission. Interrogatory No. 8's reference to booking rejections in Interrogatory No. 7 also mischaracterizes the nature of Complainant's claims, which include allegations that Respondents not only failed to accept booking attempts by Complainant but also that Respondents created a system in which Complainant could not seek to tender cargo at all or was otherwise told in advance that proper bookings, if made, would be rejected.

Subject to and without waiver of the foregoing, Complainant states that document collection and review is still ongoing, and that after an appropriate confidentiality stipulation and protective order providing for the confidential treatment of documents and information is agreed by the Parties and issued by the Presiding Officer in this action, Complainant intends to produce in discovery in this action relevant, non-privileged documents and information sufficient to respond to Interrogatory No. 8.

SUPPLEMENTAL ANSWER: Subject to and without waiver of the foregoing objections and response, Complainant states that, where Respondent failed to carry cargo as requested under the 2020 and 2021 Service Contracts, Complainant—directly and/or through its booking agent(s)—undertook reasonable efforts to identify and procure alternative transportation and further states that specific details regarding alternate transportation efforts are reflected including in documents bates-stamped BBY_EVERGREEN-0000271786 and BBY_EVERGREEN-0001380997.

INTERROGATORY NO. 9: For each shipment identified in response to Interrogatory 8 where Respondent procured alternative transportation, identify in detail the facts relating to such alternate transportation, including the VOCC, NVOCC, freight forwarder or other transportation service provider that provided the transportation, the cargo tendered to such carrier (number and size of container and commodity(ies), origin and destination), whether the transportation was pursuant to the carrier's tariff (if so, identify the tariff) or a contract (including a service contract, a NVOCC Service Arrangement, or a Negotiated Rate Arrangement) between Respondent and the carrier (if so identify the contract), and the particular rate(s) applicable to such shipment.

ANSWER: Complainant incorporates its General Objections as though fully set forth herein. Complainant further objects to Interrogatory No. 9 to the extent it purports to require the production of documents or information that are protected by the attorney-client privilege, the attorney work product doctrine, or

any other applicable privileges, immunities, or protective doctrines. Complainant further objects to Interrogatory No. 9 to the extent that it seeks disclosure of information protected by obligations of confidentiality. Complainant further objects that Interrogatory No. 9 seeks disclosure of information that is not relevant to any claims or defenses in this action and that is not likely to lead to the discovery of admissible evidence, including information and allegations underlying actions other than this action before the Federal Maritime Commission.

Subject to and without waiver of the foregoing, Complainant states that document collection and review is still ongoing, and that after an appropriate confidentiality stipulation and protective order providing for the confidential treatment of documents and information is agreed by the Parties and issued by the Presiding Officer in this action, Complainant intends to produce in discovery in this action relevant, non-privileged documents and information sufficient to respond to Interrogatory No. 9.

SUPPLEMENTAL ANSWER: Subject to and without waiver of the foregoing, Complainant supplements its previous answer to Interrogatory No. 9 while restating its objection that a demand to provide all documents in support of its claims is unreasonable and unduly burdensome, but such documents include BBY_EVERGREEN-0000271786 and BBY_EVERGREEN-0001380997, produced to Respondent in this action, which are identified herein as a part of Complainant's efforts to make alternative transportation arrangements for cargo that could and should have been carried by Respondent.

INTERROGATORY NO. 10: Identify all additional costs allegedly incurred by Complainant as a result of Evergreen's alleged non-acceptance of shipments tendered by Complainant or on Complainant's behalf between January 1, 2020 and December 31, 2022.

ANSWER: Complainant incorporates its General Objections as though fully set forth herein. Complainant further objects that Interrogatory No. 10 seeks disclosure of information that is not relevant to any claims or defenses in this action and that is not likely to lead to the discovery of admissible evidence. Complainant further objects to Interrogatory No.10 to the extent it purports to require the production of documents or information that are protected by the attorney-client privilege, the attorney work product doctrine, or any other applicable privileges, immunities, or protective doctrines. Complainant further objects to Interrogatory No. 10 to the extent that it seeks disclosure of information protected by obligations of confidentiality. Complainant further objects to Interrogatory No.10 on the grounds that it is vague and/or ambiguous as to what constitutes "all additional costs" potentially encompassing costs with only tangential or minimal relevance, and thus Complainant is unable to ascertain its complete and accurate meaning. Interrogatory No. 10 also mischaracterizes the

nature of Complainant's claims, which include allegations that Respondents not only failed to accept booking attempts by Complainant but also that Respondents created a system in which Complainant could not seek to tender cargo at all or was otherwise told in advance that proper bookings, if made, would be rejected.

Subject to and without waiver of the foregoing, Complainant states that document collection and review is still ongoing, and that after an appropriate confidentiality stipulation and protective order providing for the confidential treatment of documents and information is agreed by the Parties and issued by the Presiding Officer in this action, Complainant intends to produce in discovery in this action relevant, non-privileged documents and information sufficient to respond to Interrogatory No. 10.

SUPPLEMENTAL ANSWER: Subject to and without waiver of the foregoing responses and objections, Complainant supplements its response to Interrogatory No. 10 as follows: documents underlying Complainant's additional incremental costs due to Evergreen's failure to satisfy its service commitments and imposition of Peak Season Surcharges and other charges have been shared through documents produced in this action. Complainant restates its objection that a demand to provide all documents in support of its claims is unreasonable and unduly burdensome, but such documents include: BBY_ EVERGREEN-0000744754, BBY_ EVERGREEN-0001380997, and BBY_ EVERGREEN-0000271786.

Evergreen argues that BBY's answers do not separately identify shipments that were tendered and not shipped. Mot. to Compel 9-11. At the discovery conference, Evergreen argued that this information is central to the case, but BBY argued that it was Evergreen's communications to BBY and its agents that led BBY to understand that tendering shipments would be futile unless BBY agreed to extracontractual charges, and that making a tender they knew would not be accepted would only have created more delay in the shipping process. Regardless of BBY's view of the case, there is presumably some subset of shipments that were tendered and refused, and such shipments are relevant.

BBY acknowledges that it has not separated out the tendered shipments from its dataset, and states that it does not have this information in its records. BBY's booking agent for all shipments during the relevant time period was Yusen Logistics. Opp'n to Mot. to Compel 9. At the discovery conference, BBY confirmed it does not have this information in its records, and its understanding is that Yusen also does not have system-level information regarding shipments tendered and refused, although there may be email traffic regarding these shipments in Yusen's response to the parties' subpoenas.

Ruling: BBY states that it does not have the requested information in its possession, and Evergreen has provided no basis for me to conclude otherwise. The motion with respect to interrogatories 7-10 is therefore DENIED. BBY is again reminded of its obligation to supplement, and should relevant emails from Yusen become available as discovery progresses, they must be provided to Evergreen.

C. Interrogatory 11

Evergreen's interrogatory 11 seeks BBY's damages calculation for shipments shipped by other carriers:

INTERROGATORY NO. 11: Explain in detail how the excess freight costs alleged in paragraph 45 and 46 of the Complaint were calculated, including the identity of the VOCC, NVOCC, freight forwarder or other transportation service provider that provided the transportation.

ANSWER: Complainant incorporates its General Objections as though fully set forth herein. Complainant further objects to Interrogatory No. 11 to the extent that it seeks disclosure of information protected by obligations of confidentiality. Complainant further objects to Interrogatory No. 11 to the extent it purports to require the production of documents or information that are protected by the attorney-client privilege, the attorney work product doctrine, or any other applicable privileges, immunities, or protective doctrines. Complainant further objects to Interrogatory No. 11 to the extent it mischaracterizes, paraphrases, or quotes incomplete portions of the allegations in Paragraphs 45 and 46 of the Complaint, and refers Respondents to those allegations for their complete and accurate contents.

Subject to and without waiver of the foregoing, Complainant states that document collection and review is still ongoing, and that after an appropriate confidentiality stipulation and protective order providing for the confidential treatment of documents and information is agreed by the Parties and issued by the Presiding Officer in this action, Complainant intends to produce in discovery in this action relevant, non-privileged documents and information sufficient to respond to Interrogatory No. 11.

SUPPLEMENTAL ANSWER: Subject to and without waiver of the foregoing, Complainant states that the excess freight costs alleged in Paragraphs 45 and 46 of the Verified Complaint were calculated by comparing the actual amounts paid by Complainant to Respondents for the transportation of cargo during the 2020 and 2021 shipping years to the amounts Complainant should have paid under the applicable 2020 and 2021 Service Contracts had Evergreen satisfied its service commitments. This differential constitutes the excess freight charges that form the basis of Complainant's shortfall claims.

Complainant supplements its previous answer to Interrogatory No. 11 by referring Respondent to documents bates-stamped BBY_ EVERGREEN-0000744754, BBY_ EVERGREEN-0000271786, and BBY_ EVERGREEN-0001380997, produced to Respondent in this action, which are identified herein on a non-exhaustive basis.

BBY_ EVERGREEN-0000744754 contains a pivot table with the volume of cargo, converted to FEUs, shipped by Evergreen for BBY during the relevant time period, which is far less than the service commitments from

Evergreen to BBY set forth in the Service Contracts. As set forth in the data contained in BBY_EVERGREEN-0000744754, for the 2020 Shipping Year, there was a shortfall of 789 FEUs and for the 2021-2022 Shipping Year there was a shortfall of 259.9 FEUs.

BBY_EVERGREEN-0000271786 contains container information data from Complainant's third-party payment processing service, Berman Blake. Complainant produced BBY_EVERGREEN-0000271786 in its third production.

BBY_EVERGREEN-0001380997 is a spreadsheet produced in this proceeding on July 15, 2025, containing container information selected by former logistics employees of Complainant from Complainant's data sources. Metadata for the document shows that it was created by former Complainant employee Paul Pastor.

BBY_EVERGREEN-0000271786 and BBY_EVERGREEN-0001380997 together comprise the data necessary to compare the cost of containers shipped with NVOCCs on the shipping lanes that were supposed to have been covered by the 2020 Service Contract and 2021 Service Contract, with the costs for such containers pursuant to each time period to calculate the additional incremental costs incurred by BBY to ship actual containers on the same lanes and in the same shipping year as a result of Evergreen's failure to satisfy its service commitments.

The interrogatory asks "how" and BBY's answer explains "from what," and so is not responsive. In its opposition to the motion to compel, BBY provided attached its answers to Evergreen's First Supplemental Set of Interrogatories; interrogatories 3 and 4 of this supplemental set mirror interrogatory 11, and Exhibit B to BBY's opposition, appendices A1-A8, provide a detailed calculation of BBY's alleged damages by shipping year, starting with bill-of-lading-level price information for actual shipments, a table summarizing the shipments by lane covered by the Evergreen service contract, a calculation of what BBY would have paid had it shipped those containers with Evergreen, and a calculation of the excess costs. It appears that this information answers the question, but interrogatory answers should stand on their own, and BBY's answer to interrogatory 11 remains incomplete.

Ruling: The motion with respect to interrogatory 11 is GRANTED. BBY is ORDERED to supplement its response to interrogatory 11 by providing its damages calculation for excess freight costs attributable to payments to other carriers and, to the extent possible, the identity of those carriers.

D. Interrogatories 12 and 15

Evergreen interrogatories 12 and 15 are contention interrogatories seeking information regarding surcharges Evergreen charged to BBY:

INTERROGATORY NO. 12: Identify all facts supporting the allegation that "Evergreen engaged in an unfair practice of coercing financial concessions

beyond the Service Contracts' terms," as alleged in paragraph 47 of the Complaint.

ANSWER: Complainant incorporates its General Objections as though fully set forth herein. Complainant further objects to Interrogatory No. 12 to the extent it purports to require the production of documents or information that are protected by the attorney-client privilege, the attorney work product doctrine, or any other applicable privileges, immunities, or protective doctrines. Complainant further objects to Interrogatory No. 12 to the extent that it seeks disclosure of information protected by obligations of confidentiality. Complainant further objects to Interrogatory No. 12 to the extent it mischaracterizes, paraphrases, or quotes incomplete portions of the allegations in Paragraph 47 of the Complaint, and refers Respondents to those allegations for their complete and accurate contents.

Subject to and without waiver of the foregoing, Complainant states that document collection and review is still ongoing, and that after an appropriate confidentiality stipulation and protective order providing for the confidential treatment of documents and information is agreed by the Parties and issued by the Presiding Officer in this proceeding, Complainant intends to produce in discovery in this action relevant, non-privileged documents and information sufficient to respond to Interrogatory No. 12.

SUPPLEMENTAL ANSWER: Subject to and without waiver of the foregoing, Complainant supplements its previous answer to Interrogatory No. 12 by referring Respondent to documents bates-stamped BBY_ EVERGREEN-0001380997 and BBY_ EVERGREEN-0000271786, produced to Respondent in this action, which form the basis for BBY's peak season surcharge/extracontractual surcharge reparations. These documents demonstrate the amounts charged by Evergreen in excess of what Evergreen should have charged Complainant, well above the amounts agreed within the Service Contracts to ship such containers.

BBY_ EVERGREEN-0000271786 was produced in this proceeding as a part of BBY's third production made on February 25, 2025.

BBY_ EVERGREEN-0000271786 and BBY_ EVERGREEN-0001380997 together comprise the data showing the "information concerning the containers of Complainant's cargo that form the basis of Complainant's claims for reparations, such as cargo carried by other carriers at higher rates".

Complainant restates its objection that a demand to provide all documents in support of its claims is unreasonable and unduly burdensome, but such documents include: EVERGREEN-00062673, which is an internal Evergreen email dated July 31, 2021 from Justin J.M. Chiu to Abdel El Hely, demonstrating that there was recognition within Evergreen that space was being not allocated to shippers who refused to increase their contract rates. The email chain shows that while Complainant was offered June reefer cargo space, such space was not provided, even after making offers to pay more or agree to premium rates. Despite Complainant's best efforts to book space and acknowledgment within Evergreen

that there were long-standing relationships with shipper customers, Evergreen could barely confirm any bookings. In response to being told that tariff rates were increasing and that Evergreen was “controlling the volume” into the U.S. West Coast, Mr. El Hely even stated that he “[u]nderstood but I believe we should honor SOMETHING for what account signed for yes? Meaning right now they have 4 confirmations and 3/4 are for HIGH level premium.” Despite attempting to gain additional space for the shippers, the email outlines clearly how this booking behavior harmed shippers and added unnecessary costs, to the detriment of Complainant.

INTERROGATORY NO. 15: Explain in detail the facts supporting Complainant’s assertion that Evergreen engaged in a practice of “coercing premium pricing and extracontractual surcharges from Complainant,” as alleged in the Complaint.

ANSWER: Complainant incorporates its General Objections as though fully set forth herein. Complainant further objects to Interrogatory No. 15 to the extent it purports to require the production of documents or information that are protected by the attorney-client privilege, the attorney work product doctrine, or any other applicable privileges, immunities, or protective doctrines. Complainant further objects to Interrogatory No. 15 to the extent that it seeks disclosure of information protected by obligations of confidentiality. Complainant further objects to Interrogatory No. 15 to the extent it mischaracterizes, paraphrases, or quotes incomplete portions of the allegations in the Complaint, and refers Respondents to those allegations for their complete and accurate contents.

Subject to and without waiver of the foregoing, Complainant states that document collection and review is still ongoing, and that after an appropriate confidentiality stipulation and protective order providing for the confidential treatment of documents and information is agreed by the Parties and issued by the Presiding Officer in this proceeding, Complainant intends to produce in discovery in this action relevant, non-privileged documents and information sufficient to respond to Interrogatory No. 15.

SUPPLEMENTAL ANSWER: Subject to and without waiver of the foregoing, Complainant supplements its previous answer to Interrogatory No. 15 by referring Respondent to BBY_EVERGREEN-0001380997 and BBY_EVERGREEN-0000271786, produced to Respondent in this action, which form the basis for BBY’s PSS/extracontractual surcharge reparations. These documents show surcharges from Evergreen to Complainant well above the amounts agreed within the relevant Service Contracts to ship ocean freight.

Complainant restates its objection that a demand to provide all documents in support of its claims is unreasonable and unduly burdensome, but such documents include: EVERGREEN-00062673, which is an internal Evergreen email dated July 31, 2021 from Justin J.M. Chiu to Abdel El Hely, demonstrating that there was recognition within Evergreen that space was being not allocated to shippers who refused to increase their contract rates. The email chain shows that

while Complainant was originally offered June reefer cargo space, such space was not provided, even after making offers to pay more or agree to premium rates. Despite Complainant's best efforts to book space and acknowledgment within Evergreen that there were long-standing relationships with shipper customers, Evergreen could barely confirm any bookings. In response to being told that tariff rates were increasing and that Evergreen was "controlling the volume" into the U.S. West Coast, Mr. El Hely even stated that he "[u]nderstood but I believe we should honor SOMETHING for what account signed for yes? Meaning right now they have 4 confirmations and 3/4 are for HIGH level premium." Despite attempting to gain additional space for the shippers, the email outlines clearly how this booking behavior harmed shippers and added unnecessary costs, to the detriment of Complainant.

Evergreen argues that this answer does not provide narrative information regarding the alleged surcharges. BBBY claims that the invoicing information in the referenced spreadsheet is inclusive of the surcharges, and so that information can be extrapolated. While this answer is probably insufficient standing alone, I note that BBBY provided a more detailed answer in connection with Evergreen's First Supplemental Set of Interrogatories, where Interrogatory No. 1 asks for substantially the same information. This answer takes the same form of as BBBY's answers to supplemental interrogatories 3 and 4.

In addition, the answers adequately show the calculation of damages related to the alleged surcharges, but there is no information regarding Evergreen's coercion of these surcharges. Without more information, the fact that BBBY paid surcharges does not by itself establish that Evergreen "coerced" them. If that is in fact BBBY's argument, then it must so state.

Ruling: The motion with respect to interrogatories 12 and 15 is GRANTED. BBBY must supplement its answers with information along the lines of the calculation provided in response to supplemental interrogatories 3 and 4, and must also identify any information currently in its possession supporting the allegation that it was coerced into paying surcharges.

E. Interrogatory No. 13

Evergreen interrogatory 13 asks BBBY to identify complaints made to Evergreen as alleged in the complaint:

INTERROGATORY NO. 13: Identify precisely any and all "complaints" made by Complainant to Respondent, as alleged in paragraph 35 of the Complaint, including for each such complaint or communication, the person transmitting it, the intended recipient(s), the means of communication, the date and time of each communication, their substance, any response thereto and all documents reflecting same.

ANSWER: Complainant incorporates its General Objections as though fully set forth herein. Complainant further objects to Interrogatory No. 13 to the extent it purports to require the production of documents or information that are protected by the attorney-client privilege, the attorney work product doctrine, or any other applicable privileges, immunities, or protective doctrines. Complainant further objects to Interrogatory No. 13 to the extent that it seeks disclosure of information protected by obligations of confidentiality. Complainant further objects to Interrogatory No. 13 to the extent it mischaracterizes, paraphrases, or quotes incomplete portions of the allegations in Paragraph 35 of the Complaint, and refers Respondents to those allegations for their complete and accurate contents. Complainant further objects that Interrogatory No. 13 seeks disclosure of information that is not relevant to any claims or defenses in this action and that is not likely to lead to the discovery of admissible evidence, including information and allegations underlying actions other than this action before the Federal Maritime Commission.

Subject to and without waiver of the foregoing, Complainant states that document collection and review is still ongoing, and that after an appropriate confidentiality stipulation and protective order providing for the confidential treatment of documents and information is agreed by the Parties and issued by the Presiding Officer in this proceeding, Complainant intends to produce in discovery in this action relevant, non-privileged documents and information sufficient to respond to Interrogatory No. 13.

SUPPLEMENTAL ANSWER: Subject to and without waiver of the foregoing, Complainant restates its objection that a demand to provide all documents in support of its claims is unreasonable and unduly burdensome, but such documents include: BBY_ EVERGREEN-0000006152, BBY_ EVERGREEN-0000006171, and BBY_ EVERGREEN-0000005999, each produced in this proceeding as a part of BBY's second production made on January 17, 2025. Discovery is still ongoing and Complainant reserves the right to supplement this response through documents and/or deposition testimony, as applicable.

BBY's answer produces three documents that do appear to be responsive, and Evergreen's argument is that there must be more. BBY acknowledges that this is likely the case, but argues that at the time of its answer to the interrogatory it produced all that it had in its possession.

Ruling: The motion with respect to interrogatory 13 is DENIED. BBY is again reminded of its continuing obligation to supplement as discovery progresses.

III. Order

Accordingly, it is hereby

ORDERED that Evergreen's Motion to Compel [Dkt. 42] is **GRANTED IN PART**. It is further

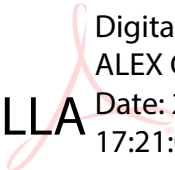
ORDERED that BBY supplement its answers to interrogatories 11, 12, and 15 no later than **October 10, 2025**. It is further

ORDERED that Evergreen's motion is **DENIED** with respect to Interrogatories 5-10, 13, 14, and 16. It is further

ORDERED that BBY's Amended Motion for Confidential Treatment [Dkt. 48] is **GRANTED**.

SO ORDERED.

ALEX
CHINTELLA



Digitally signed by
ALEX CHINTELLA
Date: 2025.09.30
17:21:00 -04'00'

Alex M. Chintella
Administrative Law Judge